

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No. 31534 of 2023

Delowar Hossain

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Abdullaha Sadiq, Advocate

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

No one appears for the opposite party

Heard and Judgment on 02.01.2024

S M Kuddus Zaman, J:

On an application under section 561A of the Code of Criminal Procedure this Rule was issued calling upon the opposite parties to show cause as to why the proceedings of C.R. Case No. 813 of 2022 under sections 138/140 of the Negotiable Instruments Act, 1881, now pending in the Court of learned Chief Metropolitan Magistrate, Chattogram should not be quashed and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that opposite party No. 2 as complainant lodged a complaint to the Chief Judicial Magistrate, Chattogram under Sections 138/140 of the Negotiable Instruments Act, 1881 alleging that the petitioner is the proprietor of DH Engineering and Construction and the complainant supplied building materials to the above company on several dates and above company owed Taka 5,47,88,673.00 to the complainant. Towards payment of above outstanding money accused No. 2 and Md. Monzurul Haque Talukder who were authorized persons issued a cheque of Taka 1,69,59,458.00 to the complainant on 22.08.2022 which were presented for encashment and dishonored due to insufficient fund on 23.08.2022. Above mentioned authorized person Md. Monzurul Haque Talukder had died on 02.05.2022.

The learned Judicial Magistrate examined the complainant under Section 200 of the Code of Criminal Procedure and took cognizance against petitioner accused No. 1 under Section 138/140 of the Negotiable Instruments Act, 1881 on 16.11.2022.

Being aggrieved by taking of cognizance and initiation of above proceedings, accused No. 1 as petitioner moved to this Court and obtained this Rule.

Mr. Abdullah Sadiq, learned Advocate for the petitioner submits that it has been admitted in the complaint that DH Engineering and Construction is a proprietorship business house and petitioner alone is the owner of the same. There is no allegation in the complaint that the petitioner issued impugned cheques to the complainant opposite party No. 2. It has been alleged that the impugned cheques dated 22.08.2022 were issued by accused No. 2 Shakil Ahmed and now deceased Md. Monzurul Haque Talukder who were not the owners of the above proprietorship firm. It has been alleged that above two persons are

authorized persons but no mention was made as to how they were authorized nor any document was submitted along with the complaint to substantiate above claim. As such the learned Judicial Magistrate committed serious illegality in taking cognizance against the petitioner under Sections 138/140 of the Negotiable Instrument Act, 1881 which is not tenable in law.

No one appears on behalf of the opposite party when the matter is taken up for hearing, although, the matter appeared in the list for hearing today.

We have considered the submission of the learned Advocate for the petitioner and carefully examined all materials on record including the petition of complaint.

The complaint petitioner has admitted that accused No. 1 was the proprietor of DH Engineering and Construction. This case has been filed due to dishonor of two cheques of Taka 1,69,59,458.00 each dated 23.08.2022 for insufficient fund. It has been alleged in the complaint that above dishonored cheques were not issued by accused No. 1 Delowar Hossen. Above cheques were issued by accused No. 2 Shakil Ahmed Tanvir and now deceased Md. Monzurul Haque Talukder. At paragraph No. 4 of the complaint it has been alleged that above two persons were authorized persons of DH Engineering and Construction but not accused No. 1 Delowar Hossen. Since DH Engineering and Construction was a proprietorship firm it has to be assumed that the financial power to issue cheques rested with above proprietors. No document has been submitted along with the complaint to show that the accused petitioner authorized accused No. 2 Shakil and now deceased Monzurul to issue impugned cheques to the complainant.

On consideration of above materials on record we hold that since the impugned cheques were not issued by accused No. 1 petitioner to the complainant he was not liable for the same and making him an accused in a case under Section 138 of the Negotiable Instrument Act is misconceived and not tenable in law. This is a preposterous and a still born proceeding against the petitioner which shall not meet the ends of justice but cause unnecessary harassment to the petitioner.

In above view of the materials on record we find substance in this petition and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is hereby made absolute. The proceedings of C.R. Case No. 813 of 2022(Pachlish), now pending in the Court of learned Chief Metropolitan Magistrate, Chattogram as far as it relates to the petitioner is hereby quashed.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.